

Sexual Harassment Prevention Training for Employees in Maine

A Word About Our Values...

Maine values employees and want them to be comfortable in the workplace.

A Word About Our Values...

Maine is an equal opportunity employee state.

This means that we value fairness and equal opportunity in the workplace. We are committed to ensuring that the workplace is free from discrimination and harassment in all its forms.

A Word About Our Values...

Instances of harassment in the workplace will not be tolerated.

Any allegations regarding discrimination, harassment or retaliation will be taken seriously and investigated thoroughly.

Ground Rules

- *Participation is required!*
- All attendees should:
 - Absorb the material.

Objectives of This Training

This Supervisor Training addresses the law and best practices for sexual harassment prevention. It covers:

- The illegality of sexual harassment;
- The definition of sexual harassment under state and federal laws and federal regulations, including the Maine Human Rights Act and Title VII;
- A description of sexual harassment, utilizing examples;
- The internal complaint process available to the employee;
- The legal recourse and complaint process available through the Maine Human Rights Commission;
- Directions on how to contact the Commission; and
- The protection against retaliation as provided under Maine law.

Why You Are Here...

Employers with 15 or more employees are required to provide sexual harassment prevention training to all **employees** located in Maine within one year of hire.

We Ensure a Culture of Integrity

We value integrity in this organization. We encourage all workers to come forward with relevant information regarding violations of internal policies, including policies prohibiting sexual harassment and ensuring equal opportunities.

We Ensure a Workplace Free of Harassment by:

- Posting sexual harassment information posters in the workplace; and
- Notifying employees of the prohibition against sexual harassment on an annual basis.

We Define Workplace Expansively

- *Any place* where business is conducted
 - Includes remote work locations
- Whenever employees are on working time or representing the employer

Workplace may include:

- Lunch breaks with co-workers;
- Company happy hours; and
- Holiday parties.

What Is Discrimination?

To discriminate is to treat someone unfavorably based on a personal characteristic or trait, such as:

- Race;
- Religion; or
- Sex.

Who Is Protected from Discrimination?

- Employees;
- Applicants;
- Apprentices;
- Agricultural employees; and
- Staffing agency workers.

What Is Sexual Harassment?

Sexual harassment is a type of employment discrimination based on sex.

Definition of Unlawful Sexual Harassment

Discrimination based on sex includes:

- Gender;
- Pregnancy, childbirth or related medical conditions;
- Gender identity; and
- Sexual orientation.

Definition of Unlawful Sexual Harassment

Maine law provides that unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitute sexual harassment when:

- Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment;
- Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual; or
- Such conduct has the purpose or effect of substantially interfering with an individual's work performance or creating an intimidating, hostile or offensive working environment.

Definition of Unlawful Sexual Harassment

Federal law provides that:

It shall be an unlawful employment practice for an employer - -

... to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions or privileges of employment, because of such individual's race, color, religion, sex, or national origin[.]

Title VII

- Most far-reaching of the anti-discrimination laws at the federal level
- Wide scope of coverage
- Provides for administrative and judicial enforcement

Definition of Unlawful Sexual Harassment

Discrimination laws do not prohibit all conduct of a sexual nature in the workplace.

Sexual harassment occurs when submission to **unwelcome** sexual conduct is made a term or condition of employment.

Unlawful Employment Practices Include:

- Harassment of an employee directly by an employer.
- Harassment of an employee indirectly by agents of the employer (for example, co-workers) with the employer's knowledge.

Who May Be a Harasser?

- Supervisor:
 - Direct Supervisor; or
 - Supervisor in another area;
- Agent of the employer;
- Co-worker; or
- Nonemployee.

Federal Definition of Supervisor

The Supreme Court has defined a *supervisor* as someone empowered by the employer to make tangible employment actions against the affected employee.

Vance v. Ball State

Supervisor = Any Employee With
Supervisory Authority

Supervisory Authority is defined in a
number of ways.

Supervisory Authority:

Practically speaking, a supervisor can tell you:

1. What to do;
2. When to do it;
3. How to do it; and
4. What happens if you do or don't do it.

A supervisor can then act based on your performance, behavior or conduct.

Supervisory Authority:

1. Authority to exercise independent judgment regarding or to recommend the following actions for other employees:

- Hire;
- Transfer;
- Promote;
- Discharge;
- Assign;
- Reward; or
- Discipline.

Supervisory Authority:

2. Authority to direct other employees or adjust their grievances.

An Employer Could Be Sued by the Following Individuals:

- Employees;
- Job applicants;
- Customers;
- Clients; and
- Vendors.

An employee must establish the following in a claim:

- The harassment was unwelcome;
- The harassment was based on a legally protected classification (i.e. sex);
- The harassment was sufficiently severe or pervasive to alter the conditions of employment and create a working environment that is objectively and subjectively hostile or abusive to the employee; and
- Liability can be imputed on behalf of the employer.

Types of Conduct That Constitute Sexual Harassment

Visual conduct includes:

- Leering;
- Making sexual gestures; and
- Displaying suggestive objects or pictures, cartoons or posters.

Types of Conduct That Constitute Sexual Harassment

Verbal conduct includes:

- Making or using derogatory comments, epithets, slurs and jokes;
- Sexual comments;
- Sharing inappropriate stories;
- Bragging of a sexual nature;

Types of Conduct That Constitute Sexual Harassment

- Unwanted verbal sexual advances or propositions;
- Offering employment benefits in exchange for sexual favors; and
- Making or threatening reprisals after a negative response to sexual advances.

But I Didn't Mean It That Way!

A supervisor's intent when making or using comments, epithets, slurs or jokes ***does not matter***.

The following statements are not defenses to a sexual harassment claim:

- “I was just joking”
- “I called her ‘sweetie’ as a term of endearment”

Types of Conduct That Constitute Sexual Harassment

Verbal conduct that would be considered abusive, such as:

- Verbal abuse of a sexual nature;
- Graphic verbal commentaries about an individual's body;
- Sexually degrading words used to describe an individual; or
- Suggestive or obscene letters, notes or invitations.

Types of Conduct That Constitute Sexual Harassment

Conduct that is physical in nature includes:

- Unwanted touching;
- Brushing by people;
- Assault; and
- Impeding or blocking movements.

Unlawful Sexual Harassment

1. *Quid pro quo*
2. Hostile work environment

Quid pro quo

This Latin phrase means “something for something.”

Sexual harassment can occur when a manager offers an employee something (for example, a promotion or job security) in exchange for sex.

Quid pro quo

Harassment occurs when “submission to or rejection of such conduct by an individual is used as a basis for employment decisions affecting the individual.”

Hostile Work Environment

Sexual harassment can also occur through a *hostile work environment* – conduct or statements that are so offensive or intimidating that they interfere with the work environment.

Hostile Work Environment

1. Severe

- Nature of conduct

OR

2. Pervasive

- Number of Times

Hostile Work Environment

The nature of the conduct can be severe – such as one instance of particularly awful unwanted touching.

Hostile Work Environment

The nature of the conduct can be pervasive – such as repeated sexual advances or unwelcome comments.

Did You Know?

An individual need not be the intended target of harassment in order to prove a case of sexual harassment in the workplace.

Practical Example

Andy is hired as an office technician by Pat, his direct supervisor. On Andy's first day, Pat gives Larry, another office technician, a lingering hug and kiss on the lips. Pat says, "Welcome to Pat's World. If you remember just one rule, 'what Pat wants, Pat gets,' you'll be alright here." The next day, Larry arrives early to work to avoid contact, but Pat starts rubbing Larry's shoulders and says, "You can't stay seated forever." Andy sees and hears these interactions.

Andy starts losing sleep and misses work because of Pat's mistreatment of Larry.

Choose the Best Answer:

- ☐ Andy cannot claim hostile work environment discrimination because Pat targeted and touched Larry.
- ☐ Andy has personally witnessed Pat's harassment of Larry, and, therefore, may sue Pat and the employer for sexual harassment due to a hostile work environment.

Choose the Best Answer:

- ☐ Andy cannot claim hostile work environment discrimination because Pat targeted and touched Larry.
- ✓ Andy has personally witnessed Pat's harassment of Larry, and, therefore, may sue Pat and the employer for sexual harassment due to a hostile work environment.

Standard for Non-Supervisor Harassment

The Supreme Court in *Vance v. Ball State* stated that an employer is liable for hostile work environment harassment by employees who are not supervisors if the employer was “negligent in failing to prevent harassment from taking place.”

Practical Example

Ben and Sarah were on their way to a client meeting. Ben parked the car and locked the vehicle, began talking to Sarah about various sexual activities he enjoys and touched her in an offensive manner. Sarah resisted and attempted to leave, but could not escape the car.

Will Sarah's Claim Be Successful?

- ☐ Yes. The conduct was severe and pervasive in nature – even violent. Samantha will meet her legal burden.
- ☐ No. Although the conduct was objectionable and physical in nature, in order to meet her burden, Samantha must prove that there was more than one incident in order to meet the severe and pervasive standard.

Will Sarah's Claim Be Successful?

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Severe Conduct

A single, unusually severe incident of harassment may be sufficient to constitute a Title VII violation; the more severe the harassment, the less need to show a repetitive series of incidents. This is particularly true when the harassment is physical.

Practical Example

Taylor alleges that her co-worker made repeated unwelcome sexual advances toward her. A preliminary investigation shows that the co-worker had invited Taylor to join a group of employees who regularly socialized at dinner after work.

Was Taylor a Victim of Sexual Harassment?

- ☐ Yes
- ☐ No
- ☐ Need more information

Was Taylor a Victim of Sexual Harassment?

☐ Yes

☐ No

☒ Need more information

Objective Standard

In determining whether sexual harassment occurred, courts will apply a “reasonable person” standard.

The co-worker's invitations, viewed in that context and from the perspective of a reasonable person, could create a hostile environment. However, the allegation should be investigated further.

Lesbian, Gay, Bisexual and Transgender Individuals

Employers may not discriminate against lesbian, gay, bisexual or transgender individuals because of sex. Sex discrimination may include:

- Sexual harassment; or
- Taking adverse actions because of nonconformance with sexual stereotypes.

Practical Example

Tamara is a transgender woman. She notified her supervisor, Alison, that she has completed her transition. However, Alison insists on calling Tamara “Tom” (her former male name), using male pronouns and referring to Tamara as “sir.” Alison refers to Tamara in this manner in front of co-workers and clients, who would otherwise have no reason to know about Tamara’s transition.

Can Tamara claim that Alison is discriminating against her based on her sex?

- ☐ Yes. Tamara is being subjected to workplace harassment based on her sex.
- ☐ No. Alison's comments may be "slips of the tongue." Her use of Tamara's former male name isn't malicious.

Can Tamara claim that Alison is discriminating against her based on her sex?

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Practical Example

Sales Manager Fred repeatedly assigns Harry, a male employee in his 20s, to attend out-of-town conventions that require an overnight stay. The conventions frequently result in additional sales opportunities for Harry. His co-worker, Jane, is in her 30s and has three kids. Jane is never asked to travel on overnight trips because Fred assumes she won't want to leave her children. Jane has not closed any sales based on additional leads from regional conventions.

Can Jane claim that Fred is discriminating against her based on her sex?

- ☐ Yes. Jane is being denied an income opportunity because she is a mother and Fred assumes she won't travel.
- ☐ No. Fred's failure to assign Jane to overnight travel is a business decision based on Harry's availability for travel.

Can Jane claim that Fred is discriminating against her based on her sex?

- ✓ Yes. Jane is being denied an income opportunity because she has children and Fred assumes she won't travel.
- ☐ No. Fred's failure to assign Jane to overnight travel is a business decision based on Harry's availability for travel.

Practical Example

Max is heterosexual. Several times a day, Max's supervisor, Mason, called Max a "queer," "faggot," "homo," and "gay porn star." As a joke, Mason posted a picture of Max in the men's bathroom. The picture showed a target on Max's mouth and included a reference to pornography. The other workers laughed. Max was humiliated.

Can Max claim that his supervisor is discriminating against him based on his sex?

- ☐ Yes. Max was harassed by his supervisors because of sex and/or his perceived sexual orientation.
- ☐ No. Max is heterosexual and Mason's actions were meant in jest.

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- ✓ Yes. Max was harassed by his supervisors because of sex and/or his perceived sexual orientation.
- ☐ No. Max is heterosexual and Mason's actions were meant in jest.

True or False Quiz

An employee may file a claim for sexual harassment even if the supervisor took no adverse employment action (e.g., termination or demotion) against the employee.

☐ True

☐ False

True or False Quiz

An employee may file a claim for sexual harassment even if the supervisor took no adverse employment action (e.g., termination or demotion) against the employee.

✓ True

☐ False

Adverse Actions in Harassment Claims

Unlawful sexual harassment may occur without economic injury to or termination of the employee affected by the offensive conduct.

Workplace Investigations

The employer has an obligation to conduct an effective workplace investigation of a harassment complaint.

The investigation will remain confidential to the extent possible and permitted by law.

What if...

A supervisor is accused of harassment?

We Investigate the Complaint

- The supervisor may be suspended during the pendency of an investigation
- The complaint will be promptly and thoroughly investigated
- The investigation will be documented
- The complainant will be informed of the outcome

We Guard Against Retaliation

An employer has a duty to guard against retaliation in the workplace.

Definition of Retaliation

Unlawful retaliation includes any *materially adverse* employment action taken against the complainant.

An action is *materially adverse* if it would deter a reasonable person from engaging in a protected activity.

Burlington Northern & Santa Fe Ry. V. White, 548 U.S. 53 (2006).

Examples of Adverse Employment Actions

- Firing
- Demoting
- Increasing work load
- Transferring to a less desirable location

Practical Example

While working on a major project, Jonas stayed late at the office one night. His male supervisor, Arthur, invited him for “drinks at the bar, dinner at the restaurant and dessert at my place.” Jonas declined. Arthur repeated the invitation the following day. Jonas declined again. At Jonas’s next performance evaluation, Arthur rates his work as “not satisfactory.” Jonas files a complaint with the Commission. Based on his claim, Arthur demotes Jonas the following month.

Does Jonas have a retaliation claim?

☐ Yes

☐ No

Does Jonas have a retaliation claim?

☒ Yes

☐ No

Advanced Discipline

By demoting an employee who refused to embark on a personal relationship with him, Arthur may have engaged in *quid pro quo* harassment and retaliation. An employer may wish to address the conduct by imposing an advanced level of discipline, such as termination.

Did You Know?

Sexual harassment can occur between members of the same sex, and can be brought by male employees. In fact, in 2018, 15.9% of sexual harassment claims filed with the EEOC were made by men.

Practical Example

Eric and his fiancée, Miriam, work at the same company. Miriam filed a discrimination claim with the EEOC. Eric is fired shortly thereafter.

Does Eric have a claim for retaliation?

☐ Yes

☐ No

Does Eric have a claim for retaliation?

☒ Yes

☐ No

Practical Example

The conduct is unlawful retaliation when the person who suffers an adverse action is within the zone of interests of the complainant.

Thompson v. N. Amer. Stainless

Internal Policy

With respect to violations of our policies (discipline, conduct or sexual harassment prevention policy), offenders will be subject to corrective action, including formal discipline, up to and including termination.

We May Impose Discipline

- Varying levels of discipline may be proper depending on the seriousness of an employee's actions.
- We review all discipline decisions for fairness.
- We reserve the right to impose any discipline, up to and including termination, for misconduct.

Failure to Implement Appropriate Level of Discipline

Maintaining a hostile environment or allowing harassment in the workplace to continue may result in escalating incidents or external investigations.

Remedies Available for Sexual Harassment

Under federal law, an employee must be restored to his or her “rightful place.”

What Is “Rightful Place” Under Title VII?

- Back pay (less interim earnings)
- Equitable relief (what’s fair)
 - For example, an order compelling reinstatement
- Front pay (if reinstatement not available)

Remedies for Intentional Discrimination

If an employer is found to have engaged in intentional discrimination, then the following remedies are available:

- Compensatory damages; and
- Punitive damages.

Remedies Available to Victims of Sexual Harassment

In a civil cause of action, an employee may recover the following:

- Back pay;
- Compensatory damages;
- Reinstatement; and
- Costs and fees.

Remedies Available to Victims of Sexual Harassment

- An employer should take prompt and effective corrective action if the harassment allegations are proven.
- The employer must take appropriate action to stop the harassment and ensure it will not continue.

Remedies Available to Victims of Sexual Harassment

- The employer must also communicate to the complainant that action has been taken to stop the harassment from recurring.
- Finally, appropriate steps must be taken to remedy the complainant's damages, if any.

Resources for Victims of Harassment

- **Contact:**
Maine Human Rights Commission
51 State House Station
Augusta, Maine 04333-0051
Phone (207) 624-6290
FAX (207) 624-8729
TTY: MAINE RELAY 711
OR
- **Visit the Commission Website:**
www.maine.gov/mhrc

Thank You for Your Participation

If you have any additional questions,
contact:

[HR Contact Information]

If you wish to report any concerns
anonymously:

[Hotline Number, if applicable]